



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 11497

DEC 12 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

EXPIRATION DATE: February 28,
1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. **GRANTEE:** Chevron U.S.A. Products
San Francisco, California
2. **PURPOSE AND LIMITATION:** This exemption authorizes the one-time transportation, in commerce, of a DOT Specification 111A100W1 tank car, containing a residual amount of a class 8 material, meeting all DOT requirements except that the tank car has a defective top operated bottom outlet valve. This exemption provides no relief from any regulations other than as specifically stated.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 173.31(a); 173.29(a); and 174.67(k).
5. **BASIS.** This exemption is based on Chevron U.S.A. Products Company's application of May 12, 1995, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification number	Packing Group
Corrosive liquids, n.o.s. (Sodium sulfide solution containing sodium hydroxide)	8	UN 1760	II

7. **PACKAGING(S) and SAFETY CONTROL MEASURES:**
 - a. **PACKAGING** - Packaging prescribed is a DOT Specification 111A100W1 tank car, NATX 21661, meeting all DOT specification requirements except that the tank car has a defective top operated bottom outlet valve which is equipped with a bottom outlet cap to prevent leakage during transportation.

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b. **MARKING** - The tank car must be marked "DOT-E 11497" in letters and numerals at least four inches high on a contrasting background above the DOT specification marks.

8. **SPECIAL PROVISIONS.** Shipment of the tank car is authorized from Snowflake, Arizona, to Hockley, Texas, a distance of approximately 800 miles utilizing the most direct route available via the Apache Railway Company, the Atchison, Topeka and Santa Fe Railway Company, and the Southern Pacific Transportation Company.

9. **MODES OF TRANSPORTATION AUTHORIZED.** Rail freight.

10. **MODAL REQUIREMENTS:** The Federal Railroad Administration is to be notified if any unusual incident occurs, such as derailment or exterior tank car damage, during the movement by contacting the:

Federal Railroad Administration
Office of Safety Enforcement, RRS-12
Hazardous Materials Division
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9252 or 366-0509

11. **COMPLIANCE.** Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS.

a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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